

# THE RIGHTS REVOLUTION

Lawyers, Activists, and Supreme Courts  
in Comparative Perspective



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*To Robert O. and Amelia Epp*

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## ONE

### Introduction

*Sed quis custodiet ipsos custodes?*

(But who will guard the guardians?)

—Juvenal

On October 29, 1958, at 5:45 in the morning, nine Chicago police officers acting without a warrant forced their way into James and Flossie Monroe's home, pulled the Monroes and their six children out of bed, and forced them to stand half-naked in the living room while they ransacked the home, dumped out the contents of drawers, tore clothes out of closets, and slit open mattresses. Officer Pape, the leader, beat James Monroe with his flashlight and called him "nigger" and "black boy"; another officer pushed Flossie Monroe; and several officers kicked and hit the children and pushed them to the floor. The officers eventually took Mr. Monroe to a station house, where he was forced to appear in a lineup and was questioned for ten hours about a recent murder. Throughout the ordeal, the officers refused to allow Monroe to call a lawyer or his family. In the end he was released—the victim of a story about a "Negro robber" concocted by the real murderers. The Monroe family sued the officers under a federal civil rights statute, but the federal district court and the court of appeals rejected their right to sue in federal court. In 1961, to the surprise of many, the United States Supreme Court reversed and granted them this right.<sup>1</sup>

A few years later a decision like *Monroe v. Pape* would seem routine. But in early 1961 the Court had yet to establish its reputation as a consistent defender of individual rights against official abuses of power.<sup>2</sup> Only a few years earlier, for instance, in *Screws v. United States*, a criminal case brought against a Georgia sheriff who had brutally beaten a black man to death, the Supreme Court overturned the sheriff's conviction and created a difficult standard for convicting perpetrators of police brutality.<sup>3</sup> The sheriff was acquitted on retrial under the new standard. The *Monroe* decision, by contrast, opened the door to civil lawsuits to redress official abuses of individual rights.<sup>4</sup>

The decision, moreover, was part of a much larger transformation in

which the Supreme Court, for the first time in its history, began deciding and supporting individual rights claims in a sustained way. As late as the mid-thirties, less than 10 percent of the Court's decisions involved individual rights other than property rights; the Court instead devoted its attention to business disputes and often supported property-rights claims brought by businesses and wealthy individuals.<sup>5</sup> The Court's attention and support eventually shifted to modern individual rights.<sup>6</sup> By the late sixties, almost 70 percent of its decisions involved individual rights,<sup>7</sup> and the Court had, essentially, proclaimed itself the guardian of the individual rights of the ordinary citizen. In the process, the Court created or expanded a host of new constitutional rights, among them virtually all of the rights now regarded as essential to the Constitution: freedom of speech and the press, rights against discrimination on the basis of race or sex, and the right to due process in criminal and administrative procedures. Undoubtedly the depth of this transformation is limited in important ways: some rights have suffered erosion, and, as many Americans know, judicial declarations of individual rights often find only pale reflections in practice.<sup>8</sup> But as I demonstrate in more detail shortly, the transformation has been real and it has had important effects. This transformation is commonly called the *rights revolution*.

Why did the rights revolution occur? What conditions encouraged the Supreme Court to regularly hear and support individual rights cases after largely ignoring or spurning them for 150 years? And why, after many years of hearing claims by powerful businesses, did the Court regularly turn its attention to the claims of "underdogs"? In sum, *what were the sources and conditions for the rights revolution?*

### Sources and Conditions for the Rights Revolution

The U.S. rights revolution is usually attributed to one or more of the following: constitutional guarantees of individual rights and judicial independence, leadership from activist judges (particularly Supreme Court justices) who have been willing to use those constitutional provisions to transform society, and the rise of rights consciousness in popular culture. Conventional explanations tend to place particular emphasis on judicial leadership as the catalyst for the rights revolution. Constitutional guarantees, judicial leadership, and rights consciousness certainly contributed to the U.S. rights revolution. This book shows, however, that sustained judicial attention and approval for individual rights grew primarily out of pressure from below, not leadership from above. This pressure consisted of deliberate, strategic or-

ganizing by rights advocates. And strategic rights advocacy became possible because of the development of what I call the support structure for legal mobilization, consisting of rights-advocacy organizations, rights-advocacy lawyers, and sources of financing, particularly government-supported financing.

This support structure has been essential in shaping the rights revolution. Because the judicial process is costly and slow and produces changes in the law only in small increments, litigants cannot hope to bring about meaningful change in the law unless they have access to significant resources. For this reason, constitutional litigation in the United States until recently was dominated by the claims of powerful businesses; they alone commanded the resources necessary to pursue claims with sufficient frequency, acumen, and perseverance to shape the development of constitutional law. And for this reason, too, constitutional law and the courts largely ignored the potential constitutional rights claims of ordinary individuals. The rights revolution grew out of the growing capacity of individual rights advocates to pursue the forms of constitutional litigation perfected by organized businesses, but for very different ends. The growth of the support structure, therefore, significantly democratized access to the Supreme Court.

Others have posited, of course, that political pressure and organized support for rights litigation influence judicial attention and approval for civil rights and liberties.<sup>9</sup> My analysis builds on such research. But what is distinctive about my analysis is its emphasis on material resources, on the difficulty with which those resources are developed, and on the key role of those resources in providing the sources and conditions for sustained rights-advocacy litigation. Many discussions of the relationship between the Supreme Court and litigants assume that the resources necessary to support litigation are easily generated and that, as a result, litigants of all kinds have always stood ready to bring forward any kind of case that the Court might indicate a willingness to hear and decide. But that presumes a pluralism of litigating interests and an evenness of the litigation playing field that is wholly unjustified. Not every issue is now, nor has been in the past, the subject of extensive litigation in lower courts, due in part to limitations in the availability of resources for legal mobilization.

### Implications of the Support-Structure Explanation

The support-structure explanation for the U.S. rights revolution is significant for two closely related debates in contemporary politics and constitutional law: (1) whether (or to what extent) democratic pro-

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cesses must be sacrificed in order to achieve protection for individual rights, and (2) how best to protect individual rights in modern society. Many people perceive a deep tension between rights and majoritarian democracy and believe that, if we wish to "guard the guardians" (the police and other public officials), we must turn unaccountable power over to judicial guardians. Some critics have claimed that the Supreme Court's decision in the *Monroe* case, for instance, amounts to a judicial usurpation of power because under the *Monroe* precedent, courts have constrained the discretion of public officials without regard to the wishes of democratic majorities.

The rights revolution, either implicitly or explicitly, is at the heart of the debate over the relationship between rights and democracy. For it was during the rights revolution, according to the advocates of contemporary individual rights, that courts finally began properly defending and protecting such rights. And according to the critics of the new rights, it was during the rights revolution that judicial power grew out of control and eroded the democratic process. Robert Bork, a leading critic of the new rights, has described the rights revolution as "the transportation into the Constitution of the principles of a liberal culture that cannot achieve those results democratically." Creating rights through judicial interpretation, he declares, is "heresy," and "it is crucial to recognize a heresy for what it is and to root it out."<sup>10</sup> His use of the term "heresy" is deliberate, for the key problem, in Bork's view, is a heretical judicial interpretation of a foundational written text, the Constitution. In the judges' hands, Bork charges, the Constitution has been transformed from a mechanism for limiting arbitrary governmental power into a source for arbitrary judicial power. As Bork observed, "the Constitution is the trump card in American politics, and judges decide what the Constitution means."<sup>11</sup> This is a judge-centered analysis of the rights revolution, but it also asserts that judicial power depends on constitutional structure.

To a remarkable degree many defenders of contemporary rights accept the judge-centered interpretation of the rights revolution and of rights protection in general; they acknowledge that the rights revolution grew out of fundamentally undemocratic processes. But they defend many of the new rights on the ground that the results, in the end, strengthened democracy.<sup>12</sup> In this view, for instance, the electoral reapportionment rulings of the early sixties<sup>13</sup> deeply interfered with the democratic political process but did so in order to enhance the fairness of that process.<sup>14</sup>

If my thesis is correct, however, the common emphasis on constitutional provisions and judges is exaggerated and the concern about undemocratic processes is ill founded. Of course it is unlikely that a majority of the population, if polled, would have supported each judicial decision in the rights revolution. But many legislative policies could not survive a popular referendum either. The meaning of "democracy" is thus complex and nuanced, and the critics recognize that fact by focusing mainly on the issue of process—claiming that the process of rights creation is judge-dominated and therefore is intrinsically less a result of broadly based action than is legislative policy making.

This book is intended in part to refute that persistent claim by showing that the rights revolution depended on widespread support made possible by a democratization of access to the judiciary. Cooperative efforts among many rights advocates, relying on new resources for rights litigation—financing, organizational support, and willing and able lawyers—provided the raw material for the rights revolution. Many of those resources either were legislatively created or reflected a democratization and diversification of the legal profession and the interest-group system. Neither judges nor constitutional guarantees are irrelevant; judges ultimately decide whether to support rights claims, and constitutional guarantees may become rallying symbols for social movements and may provide footholds for lawyers' arguments and foundations for judicial decisions. But both the policy preferences of judges and the meaning of constitutional rights are partly constituted by the political economy of appellate litigation, particularly the distribution of resources necessary for sustained constitutional litigation. If the rights revolution developed out of the growth of a broad support structure in civil society, if rights litigation commonly reflects a significant degree of organized collective action, and if judicially declared rights remain dead letters unless they gain the backing of a broad support structure, then the rights revolution was not undemocratic or antidemocratic, even in the processes that created it. And if the evidence and analysis in support of that proposition is persuasive, then critics bear the burden of explaining why we should return to a time when only large businesses and the wealthy commanded the organizational strength, resources, and legal expertise to mobilize constitutional law in their favor.

The support-structure explanation is likewise pertinent to the other rights-related debate mentioned above—how best to protect individual rights in modern society. In the United States, great political battles

are fought over judicial nominees. In other countries, some citizens wish for a John Marshall or an Earl Warren (great American Supreme Court Justices) to breathe life into their moribund constitutional law. And constitutional lawyers from the United States jet about the world engaging in "constitutional engineering," the process of creating new constitutions for other countries—on the assumption that new or revised constitutional structures and guarantees will re-form other societies.

Under the support-structure explanation proposed here, however, proponents of expanded judicial protection for rights should not place *all* hope in judges or constitutional reform but should provide support to rights-advocacy lawyers and organizations. If a nation—the United States or any other—wishes to protect individual rights, it would do well not to confine its efforts to encouraging or admonishing its judges, fine-tuning its constitution, or relying on the values of popular culture to affect rights by osmosis. Societies should also fund and support lawyers and rights-advocacy organizations—for they establish the conditions for sustained judicial attention to civil liberties and civil rights and for channeling judicial power toward egalitarian ends.

### The Genesis of the Support-Structure Explanation

The standard emphases on judges, constitutional text, and popular culture reflect a nearly exclusive focus in past research on the U.S. case. In the United States, liberal judges, constitutional rights guarantees, and growing popular support for individual rights coincided at the time of the rights revolution, and so commentators attempting to interpret or explain the rights revolution commonly looked no further than those influences. But as I started to study the U.S. rights revolution I became aware of similar (or apparently similar) rights revolutions in other countries. In Britain, for instance, a country with a conservative judiciary and no constitutional bill of rights, individual rights nonetheless are gaining increasing judicial attention and support.<sup>15</sup> Such developments encouraged me to look for other possible influences, and my focus here on resources for legal mobilization is the result. The four common-law countries selected for my comparative analysis—the United States, India, Britain, and Canada—have gained reputations as sites of rights revolutions (of varying strengths and focuses, to be sure) but differ in a number of dimensions, particularly in their constitutional structures, the reputations of their judges for creativity and ac-

tivism, the presence of rights consciousness in popular culture, and the strength of their legal mobilization support structures.

In such a comparative investigation, clarity about what is being compared is essential. *Rights*, as I use the term here, consist of the new rights that emerged in judicial interpretation of U.S. constitutional law and statutes in this century. Constitutional rights in the past had been primarily the rights of property and contract. The new rights encompass, among other rights, freedom of speech and the press; free exercise of religion and prohibitions on official establishment of religion; prohibitions against invidious discrimination on the basis of race, sex, and a few other more or less immutable characteristics; the right of privacy; and the right to due process in law enforcement and administrative procedure. What precisely these new rights include and how they are to be applied in practice of course remain matters of some dispute.

I have focused, in particular, on women's rights and the rights of criminal defendants and prisoners. These two issues are especially useful lenses through which to analyze rights revolutions, for their status varies significantly from country to country and also over time. Criminal procedure is an issue within the traditional purview of common-law courts, yet until recently it received little attention in supreme courts. Criminal defendants form a diffuse, unorganized class; I examine how, in some countries and under some conditions, the rights claims of criminal defendants nonetheless came to form a major element of the rights revolution. The issue of women's rights, by contrast, is relatively new to judicial systems. Many countries' courts initially resisted the development of women's rights, yet those rights are now a significant part of the rights revolution in some of these countries. Moreover, the level of organized support for women's-rights litigation has varied significantly among countries and over time.

The *rights revolution*, as I use the term, was a sustained, developmental process that produced or expanded the new civil rights and liberties. That process has had three main components: judicial attention to the new rights, judicial support for the new rights, and implementation of the new rights. This book examines each of the four countries in terms of these components. Judicial attention (or the "judicial agenda") is measured as the proportion of cases decided by a court per year focusing on particular issues, among them the new rights. Judicial support is gauged more informally, by examining the general direction of a court's policies with regard to rights. Implementation of

judicial decisions is a complex and multifaceted matter and, with respect to implementation, this book focuses on the extent to which courts have issued a continuing stream of judicial decisions that enforce or elaborate on earlier decisions.

### Do Rights Matter in Practice?

It is important to emphasize that developments in the first two components—greater judicial attention to individual rights, and greater judicial support for them—may not lead to greater protection for those rights in practice. As Gerald Rosenberg has argued, the enforcement powers of courts acting on their own are relatively weak, and some of the key rights announced by the Supreme Court during the rights revolution were not implemented and had little of their intended effect.<sup>16</sup>

Nonetheless, there is good reason to believe that an expansion of the support structure for legal mobilization may significantly enhance the implementation of judicially declared rights in practice. Rosenberg showed that the Supreme Court's decision in *Brown v. Board of Education*<sup>17</sup> striking down racial segregation in public schools was implemented far more rapidly and substantially in the southern states that bordered the north than in the deep South because many officials in the border states favored desegregation and used the *Brown* decision to push for it.<sup>18</sup> Similarly, Michael McCann found that union advocates of comparable worth policies used judicial rulings as leverage in private bargaining to gain favorable changes in work contracts.<sup>19</sup> Those studies suggest that implementation of judicial decisions is greatly influenced by the acts and strategies of public officials and rights advocates. Yet the effectiveness of rights advocates in these endeavors is likely to be conditioned by their knowledge and resource capabilities. As Marc Galanter has written, "the messages disseminated by courts do not carry endowments or produce effects except as they are received, interpreted, and used by (potential) actors. Therefore, the meaning of judicial signals is dependent on the information, experience, skill, and resources that disputants bring to them."<sup>20</sup> The presence and strength of a support structure for legal mobilization enhances the information, experience, skill, and resources of rights claimants and thus likely affects the implementation of judicial decisions on rights. The American Civil Liberties Union (ACLU), for instance, provides individuals with assistance in asserting and defending judicially declared rights in a wide variety of situations.

The dramatic expansion of the United States Supreme Court's atten-

tion to liberal rights, then, in conjunction with a vibrant support structure, provided a new assembly of bargaining tools and symbolic resources to a wide array of previously "right-less" individuals and groups. There are limits to the social changes produced by judicial rulings, and those rulings depend on support from government officials and on private parties having the capability to use them well. But judicial rulings may be used to great effect by rights organizers. The rights revolution in the United States did not merely result in judicial recognition of the existence of individual rights; it also gave rights advocates bargaining power and leverage that enabled them to expand protection for individual rights in practice.

### An Illustration

The importance of the support structure for legal mobilization may be illustrated by the addition of a few details to the story of *Monroe v. Pape*. James and Flossie Monroe, it turns out, were not exactly lone individuals facing a hostile government on their own. The National Association for the Advancement of Colored People Legal Defense and Educational Fund (NAACP-LDF) for years had pushed a campaign of strategic litigation and political pressure against police brutality and racial discrimination in the criminal justice system, and it had gained the support of the Civil Rights Section of the United States Department of Justice.<sup>21</sup> Then, in the late fifties, the Illinois chapter of the ACLU funded a large study of the problem of illegal detention and questioning by the Chicago police. In 1959, the organization published the study, titled *Secret Detention by the Chicago Police*, which documented, on the basis of a random sample of court cases, that more than half of all persons arrested in Chicago were held and questioned in police stations for more than seventeen hours without any formal charges being filed; 10 percent were held for more than forty-eight hours.<sup>22</sup> The report showed that James Monroe's situation—at least from the time he reached the police station—was not unusual: the Illinois ACLU estimated that twenty thousand people in Chicago suffered similar illegal detention and questioning annually. Supreme Court Justices William O. Douglas and Tom Clark requested copies of the report, and Douglas soon cited it in a speech.<sup>23</sup> Two years later, after the Monroes' appeal had wound its way up through the court system, Justice Douglas wrote the Supreme Court's majority opinion in the case. The NAACP-LDF and Justice Department work, and the Illinois ACLU study in particular, provided the background to the *Monroe* case.

And then there is the matter of how the Monroes managed to pursue

their case up through the judicial hierarchy and present a persuasive legal argument, in an area of the law fraught with esoteric precedents and rules, before the Supreme Court. The main author of their brief before the Court, it turns out, was Morris Ernst, who had been one of the ACLU's leading lawyers since the twenties. The ACLU, then, provided direct support for the *Monroe* case.

The story of *Monroe v. Pape* gets even more complicated. Justice Douglas's opinion in favor of the Monroes was a classically incrementalist decision. By exposing the Chicago police officers to financial liability for their actions, the decision constituted a victory for individual rights advocates and a defeat for their opponents. But Douglas declined to take the additional step of exposing city governments to liability for the actions of their officers. And so civil rights advocates criticized the Court for not going far enough, for failing to give cities any incentive to properly train and discipline their officials. The NAACP-LDF, in particular, pursued a legal campaign to convince the courts to take that next step, which the Supreme Court eventually completed in 1978.<sup>24</sup>

The right (really a remedy) won by James and Flossie Monroe thus rested on far more than judicial power and constitutional promises (although both were crucial), and the judicial decision that declared the right was not in any ordinary sense tyrannical. The new right grew out of the collective efforts of a large number of people who relied on organizational, legal, and financial resources that had been created by broad, collective efforts.

## TWO

### The Conditions for the Rights Revolution: Theory

Conventional interpretations of the rights revolution identify several key factors—constitutional guarantees, judicial leadership, and popular rights consciousness—that have a venerable place in theories of constitutional democracy. The thesis of this book is not that these factors are irrelevant but that they are insufficient to explain the rights revolution. In this chapter I examine the theoretical logic of the conventional interpretations and show how the support-structure explanation supplements them in crucial ways. Although the various factors interact in practice, many commentators give primacy to one or another, and it is useful to discuss each one separately.

#### Conventional Interpretations

##### *The Constitution-Centered Explanation: Judicial Independence and Bills of Rights*

In the constitution-centered view, the crucial conditions for a rights revolution are structural judicial independence and a foundation of constitutional rights guarantees; given those conditions, judges are free to devote sustained attention and approval for civil rights and liberties. The judicial system's structural independence from direct political pressure is widely recognized as a necessary condition for any significant judicial check on arbitrary power. Courts are structurally independent to the extent that the job security and salaries of their judges, and the decision-making process, are insulated from political manipulation.<sup>1</sup>

Apart from judicial independence, the presence or absence of constitutional rights guarantees is widely believed to be the most important influence on the extent of judicial policy making on rights. In the popular imagination, there is no doubt that judicial support for rights flows from a bill of rights. Many scholars, too, view constitutionally en-